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REVISION HISTORY				
REV. #	DCO #	DESCRIPTION	PREPARED BY	DATE
01.00	N/A	Original policy	Bruno Bendavid & Alan Lefkowitz	October 1, 2011
02.00	N/A	Major revision	Natan Blanks	March 17, 2020
02.01	DCO00104	Two-year review cycle, removed distribution list as documents are managed electronically	Kathleen Foust	March 28, 2023

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HIPAA Privacy and Security Policy

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1 Overview

PeriGen Inc. ("PeriGen") Privacy and Security Policy and Procedure Manual is written to affirm PeriGen's commitment to comply with the Health Insurance Portability and Accountability Act of 1996 (HIPAA), the Health Information Technology for Economic and Clinical Health Act (HITECH Act), and the implementing regulations that went into effect in September, 2013. As a Business Associate, PeriGen agrees to comply with certain provisions of the HIPAA Privacy and Security Regulations. PeriGen is directly liable to the Department of Health and Human Services for non-compliance with the HIPAA Privacy and Security Regulations and for all Breaches of unsecured PHI. As a result, PeriGen's and its Workforce Members' compliance with the HIPAA and HITECH Privacy and Security Policies and Procedures included in this manual is crucial.

2 References

2.1 Applicable regulations

[A1] HIPAA Security Rule - 45 CFR Part 160 and Subparts A and C of Part 164
[A2] HIPAA Privacy Rule - 45 CFR Part 164 Subparts D and E
[A3] HITECH Act of 2019, Subtitle D

2.2 Work instructions

Work instruction	Policies addressed
[A4] HIPAA-WI-001 Workforce Training and Compliance	• Workforce Member Confidentiality and Compliance Statement • Privacy and Security Awareness and Training • Workforce Member Discipline • Disciplinary Action Policy for Self-Reported Minor Violations • Security Reminder • Availability • Updates
[A5] HIPAA-WI-002 Business Associates and Breach Notification	• Breach Notification • Business Associate Agreements
[A6] HIPAA-WI-003 Use of PHI	• Minimum Necessary Standard • De-Identification of PHI • Facsimiles
[A7] HIPAA-WI-004 Administration and Management	• Assigned Privacy Responsibility • Security Analysis and Risk Management • Information System Activity Review; Audit Controls • E-mail Audit Policy • Assigned Security Responsibility • Evaluation of Security Policies and Procedures

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	• Document retention policy
[A8] HIPAA-WI-005 Workforce Security and Information Access	• Workforce Member Security • Information Access Management • Termination Procedures
[A9] HIPAA-WI-006 Technical and Infrastructure Security	• Malicious Software • Log-In Monitoring • Password Management • Security Incident Procedures • Contingency Plan • Data Backup Plan and Disaster Recovery Plan • Emergency Mode Operation Plan • Applications and Data Criticality Analysis • Facility Access and Security • Workstation Use and Security • Device and Media Controls • Technical Access Controls • Integrity • Person or Entity Authentication Transmission Security
[A10] HIPAA-WI-007 Mobile Device Management	• Mobile Device Management (MDM)

3 HIPAA Security Regulations

Under the HIPAA Security Regulations, Covered Entities and Business Associates, are required to implement administrative, physical, and technical safeguards that ensure the confidentiality, integrity, and availability of ePHI. These safeguards are designed to:

1. Ensure the confidentiality, integrity, and availability of all ePHI it creates, receives, maintains, or transmits;
2. Protect against any reasonably anticipated threats or hazards to the security or integrity of such information;
3. Protect against any reasonably anticipated uses or disclosures of such information that are not permitted by the HIPAA Privacy Regulations; and
4. Ensure compliance with the HIPAA Security Regulations by its workforce.

The Security Policies and Procedures in this manual address PeriGen's obligations under the HIPAA Privacy and Security Regulations. In designing these policies and procedures, PeriGen and its legal counsel have considered:

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1. PeriGen's size, complexity, and capabilities;
2. The nature of PeriGen's interaction with its clients' ePHI;
3. PeriGen's technical infrastructure, hardware, and software security capabilities;
4. The costs of security measures; and
5. The probability and criticality of potential risks to ePHI.

As part of its compliance with the HIPAA Security Regulations, PeriGen has installed a Privacy & Security Officer who will oversee PeriGen's efforts to create and maintain appropriate and reasonable policies, procedures, and controls to protect the security of ePHI that PeriGen creates, receives, maintains, or transmits and ePHI Systems that PeriGen accesses, owns, or operates. PeriGen's Privacy & Security Officer will be assisted regularly by the entity's Director of Quality and Regulatory. The Director of Quality and Regulatory affairs job description specifically includes assisting the Privacy & Security Officer with ensuring PeriGen's workforce members comply with the Security Rule.

4 HIPAA Privacy Regulations

The HIPAA Privacy Regulations provide rules regarding the use and disclosure of PHI, and other rules regarding an individual's right to access PHI about himself contained in certain records. As a Business Associate, PeriGen agrees to follow all requirements of the HIPAA Privacy and Security Regulations as mandated by HIPAA and the HITECH Act. PeriGen's Privacy and Security Officer, with the assistance of Director of Quality and Regulatory will oversee its efforts to comply with the HIPAA Privacy and Security Regulations and its efforts to protect the privacy and security of all ePHI that PeriGen creates, transmits, maintains, and/or accesses. PeriGen will consistently monitor and periodically audit its practices to ensure compliance with the Privacy and Security Policies and Procedures.

5 Education and Compliance

PeriGen will provide training for all Workforce Members regarding the Privacy and Security Policies and Procedures included in this manual. All Workforce Members are required to certify in writing, by signing the Workforce Member Compliance Statement included in this manual, that they have received, read, received training on, understand and agree to follow those policies in this manual that apply to Workforce Members and all applicable provisions of HIPAA and the HITECH Act. Also, as part of their compliance with these Policies and Procedures, Workforce Members must certify that they will protect the confidentiality of PHI, including ePHI, and that they will report any unauthorized disclosures of PHI or ePHI or other Security Incidents to the Security Officer, as specified in this manual. The Privacy and Security Officers will maintain a record on each Workforce Member that includes his or her signed Workforce Member Compliance Statement. Any violations of these Security Policies and Procedures on the part of any Workforce Member may lead to the imposition of sanctions, up to and including termination.

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6 Policy and Procedure Documentation and Revision

PeriGen will continue to review and, as necessary, revise and update these Policies and Procedures to comply with the applicable HIPAA Privacy and Security Regulations or any changes in North Carolina law; to address any operational changes at PeriGen; to incorporate new technologies that protect the confidentiality, integrity and availability of ePHI; and to address any threats to the privacy or security of PHI that PeriGen may encounter in the future. PeriGen will make these Privacy and Security Policies and Procedures easily accessible to all Workforce Members. Also, PeriGen will document any revisions made to these Policies and Procedures and will notify its Workforce Members of relevant changes. Documentation recording any changes or modifications to these Policies and Procedures will be maintained for at least five years.

7 Defined Terms

Addressable: The concept of "addressable implementation specifications" was developed to provide covered entities additional flexibility with respect to compliance with the security standards. In meeting standards that contain addressable implementation specifications, PeriGen will do one of the following for each addressable specification: (a) implement the addressable implementation specifications; (b) implement one or more alternative security measures to accomplish the same purpose; (c) not implement either an addressable implementation specification or an alternative. PeriGen's choice must be documented. PeriGen must decide whether a given addressable implementation specification is a reasonable and appropriate security measure to apply within its particular security framework. For example, PeriGen must implement an addressable implementation specification if it is reasonable and appropriate to do so and must implement an equivalent alternative if the addressable implementation specification is unreasonable and inappropriate, and there is a reasonable and appropriate alternative. This decision will depend on a variety of factors, such as, among others, PeriGen's risk analysis, risk mitigation strategy, what security measures are already in place, and the cost of implementation. The decisions that PeriGen makes regarding addressable specifications must be documented in writing. The written documentation should include the factors considered as well as the results of the risk assessment on which the decision was based.

Administrative Safeguards: Administrative Safeguards are actions, policies and procedures to manage the selection, development, implementation, and maintenance of security measures to protect ePHI and to manage the conduct of PeriGen's Workforce Members in relation to the protection of ePHI.

Breach: Breach means the unauthorized acquisition, access, use, or disclosure of PHI, which compromises the security or privacy of such information, except where (1) the unintentional acquisition, access or use was by a Workforce Member acting under authority of the Covered Entity or Business Associate, if done in good faith and within the scope of authority and further use or disclosure contrary to the Privacy Regulations does not occur; (2) the inadvertent disclosure by a person authorized to access PHI at a Covered Entity or Business

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Associate was to another person authorized to access PHI at the same organization and the information is not further used or disclosed contrary to the Privacy Regulations; or (3) an unauthorized person to whom such information is disclosed would not reasonably have been able to retain such information.

Business Associate: A Business Associate is a person or entity who, on behalf of a Covered Entity, (1) performs, or assists in the performance of a function or activity involving the use or disclosure of individually identifiable health information, including, but not limited to, claims processing or administration; data analysis, processing or administration; utilization review; quality assurance; billing; benefit management; or practice management or (2) who provides, other than as a Workforce Member, legal, actuarial, accounting, consulting, data aggregation, management, administrative, accreditation, or financial services to or for a Covered Entity.

Contingency Event: A Contingency Event is an unplanned for event, such as an emergency or disaster, which may require the activation of PeriGen's Contingency Plan, Data Back-Up Plan, Disaster Recovery Plan, or Emergency Operations Plan.

Covered Entity: A Covered Entity is (i) a health plan, (ii) a health care clearinghouse, or (iii) a health care provider who transmits any health information in any form, including in electronic form.

Electronic Protected Health Information or ePHI: Electronic PHI means PHI, which is either transmitted by electronic media or maintained in electronic media.

Electronic Protected Health Information System or ePHI System: ePHI System means any electronic system owned, operated or accessed by PeriGen or its Workforce Members, which processes, stores or transmits ePHI. ePHI Systems include, but are not limited to, servers, database applications, networks, email systems and Web applications used to access ePHI.

IT Officer: IT Officer means a PeriGen employee who has been appointed by the Management Committee to assist the Security Officer. The IT Officer should possess an advanced understanding of information technology systems. The IT Officer position is an optional position that may or may not be filled, at the pleasure of the Management Committee. The IT Officer reports directly (or dotted line) to the Chief Product Officer.

Physical Safeguards: Physical Safeguards are physical measures, policies, and procedures to protect PeriGen's ePHI Systems and related buildings and equipment, from natural and environmental hazards, and unauthorized intrusion.

Production ePHI: Production ePHI means ePHI that is used for actual patient care. PeriGen has access to and may make copies of ePHI in various non-production contexts; all ePHI is subject to security and privacy rules, but non-production ePHI is not subject to parts of this policy relating to disaster recovery or emergency operations, for example.

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Protected Health Information or PHI: PHI means health information that is individually identifiable.

Relatively Minor Violation: A violation of the policies and procedures set forth herein, that the Security Officer determines has a low probability of resulting in a Breach or violation of law.

Required: Required refers to implementation specifications contained within certain HIPAA regulations with which PeriGen must comply.

Security Incident: Security Incident means the attempted or successful unauthorized access, use, disclosure, modification, or destruction of information or interference with system operations in ePHI Systems.

Significant Violation: A violation of the policies and procedures set forth herein, that the Security Officer determines has a moderate or high probability of resulting in a Breach or violation of law.

Subcontractor: A subcontractor is a person or entity to which a business associate delegates a function, activity or service in a capacity other than as a member of the workforce of such business associate.

Technical Safeguards: Technical Safeguards means the technology and the policy and procedures that PeriGen has to protect ePHI and control access to it.

Vendor: Vendor means a vendor, consultant, contractor or other non-PeriGen third party who may have access to ePHI or an ePHI System for any reason or purpose (other than those who may have incidental access) or who may have access to any PeriGen facilities housing the information technology assets that support ePHI or ePHI Systems or related infrastructure.

Workforce Member: All persons who are under the direct control of PeriGen, including, but not limited to, employees, interns, certain independent contractors whose primary work assignment is with PeriGen, and temporary personnel.

Workstation: Workstation means an electronic computing device, for example, a laptop or desktop computer, or any other device that performs similar functions, and electronic media stored in its immediate environment.

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